

IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF KANSAS
AT WICHITA, KANSAS

TARA NETTLE,	)	
	)	
Plaintiff,	)	
vs.	)	Case No.
	)	
TONY WHITAKER AND	)	
K & B TRANSPORTATION, INC.	)	
	)	
Defendants.	)	
_____	)	

COMPLAINT

COMES NOW the Plaintiff, by and through counsels Arthur E. Rhodes and Dustin L. DeVaughn of DeVaughn James Injury Lawyers, and for Plaintiff's claims against the Defendants, alleges and states:

A. PARTIES

1. Plaintiff Tara Nettle is a Minnesota resident and citizen that resides at 11351 Nettle Road, Chisholm, MN. 55719.
2. Defendant, Tony Whitaker, is a citizen of Memphis, Tennessee and resides at 4506 Seven Valley Cove, Memphis, TN. 38141.
3. Defendant, K & B Transportation, Inc., is an Iowa domestic profit company with its principal place of business and corporate headquarters at 4700 Dakota Ave, South Sioux City, NE 68776, and may be served with process through its resident agent, Brock Ackerman, 5640 S. Lakeport Road, Sioux City, IA. 51106.

B. JURISDICTION AND VENUE

4. This Court has jurisdiction over the persons and subject matter.

5. Venue is proper in the Wichita division of the Kansas District Court of the Federal District Court.
6. This collision took place in Butler County, Kansas on June 18, 2019.
7. This action is brought pursuant to 28 U.S.C. § 1332, in that the amount of controversy exceeds seventy-five thousand dollars (\$75,000.00) exclusive of interest and costs and on the basis of diversity of citizenship.

C. NATURE OF ACTION

8. This is a civil action for personal injuries suffered by Plaintiff Tara Nettle.
9. This action arises out of a motor vehicle collision on I-35 Turnpike and K-177 Highway in Butler County, Kansas on June 18, 2019.
10. Plaintiff was slowing down for traffic in the construction zone on northbound I-35 when the semi-truck and trailer being driven by Defendant, Tony Whitaker, rear-ended the Plaintiff.

D. CAUSE OF ACTION - NEGLIGENCE

11. At all times relevant herein, Defendant, Tony Whitaker, was an employee and/or agent of Defendant, K & B Transportation, Inc., and was operating in the course and scope of his employment with Defendant, K & B Transportation, Inc..
12. Defendant, Tony Whitaker was hired, supervised, and trained by Defendant, K&B Transportation, Inc.
13. The actions and omissions of Defendants Tony Whitaker and K & B Transportation, Inc. (both independently and through driver Tony Whitaker under Respondeat Superior and Vicarious Liability) were negligent and careless for the following reasons:

- a. Following too closely;
 - b. Inattentive operation of a motor vehicle;
 - c. Failure to maintain a proper lookout;
 - d. Failure to drive with reasonable care;
 - e. Failure to give warning;
 - f. Failure to drive at a safe speed;
 - g. Failure to maintain control of a motor vehicle; and
 - h. Failure to take evasive action.
14. Defendant, K & B Transportation, Inc. was further negligent by failing to properly hire, train, and supervise its employees and/or agents, including Tony Whitaker, in a way that would ensure their operation of motor vehicles in a safe and prudent manner to prevent harm to other motorists.
15. The negligence of Defendants, K & B Transportation, Inc. and Tony Whitaker directly and proximately caused the motor vehicle collision that injured Plaintiff, Tara Nettle.
16. K & B Transportation, Inc., is a motor carrier and operating under authority through the United States Department of Transportation with an assigned D.O.T. number of 320526.
17. Upon information and belief, the semi-trailer truck being operated by Tony Whitaker was owned, maintained, dispatched, supervised, controlled and repaired by K & B Transportation, Inc. and was used as a commercial motor vehicle in both intrastate and interstate business making it subject to the Federal Motor Carrier Safety Administration regulations under 49 C.F.R. Sections 381 et. seq.

18. 49 C.F.R. § 390.3(e)(1) & (2) provide that every driver and employee shall be instructed regarding and shall comply with all applicable regulations contained in the FMCSR.
19. 49 C.F.R. § 390.5 provides that "motor carrier" means a for-hire motor carrier or a private motor carrier. That term includes a motor carrier's agents, officers, and representatives as well as employees responsible for hiring, supervising, training, assigning, or dispatching of drivers.
20. K & B Transportation, Inc. was at all material times a "motor carrier" and an "employer" of its driver Tony Whitaker in regard to the operation of a commercial motor vehicle as defined in 49 C.F.R. §382.107.
21. The negligence of Defendant, K & B Transportation, Inc., and their employee/agent Defendant, Tony Whitaker, directly and proximately caused the collision and the personal injuries and damages of Plaintiff.
22. As a result of Defendants, K & B Transportation, Inc. and Tony Whitaker's negligence, Plaintiff sustained severe personal injuries. Plaintiff has or is expected to sustain past medical expenses, future medical expenses, past lost wages, future lost wages, medical mileage, and past and future non-economic damages such as pain, suffering and mental anguish.

WHEREFORE, Plaintiff requests judgment against defendant for an amount in excess of \$75,000 plus costs and any further relief this Court deems fair, just and equitable.

Respectfully submitted,

DeVaughn James Injury Lawyers

By: /s/ Arthur E. Rhodes
Arthur E. Rhodes, #17661
Richard W. James, #19822
3241 N. Toben
Wichita, KS 67226
[p] (316) 977-9999
[f] (316) 425-0414
arhodes@devaughnjames.com
rjames@devaughnjames.com
Attorneys for Plaintiff

DEMAND FOR PRETRIAL CONFERENCE AND JURY TRIAL

COMES NOW the plaintiff and demands a pretrial conference and a trial by jury.

DESIGNATION OF PLACE OF TRIAL

COMES NOW the plaintiff and designates Wichita, Kansas as the place for trial in this matter.

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Wichita, KS 67226
[p] (316) 977-9999
[f] (316) 425-0414
arhodes@devaughnjames.com
rjames@devaughnjames.com
Attorneys for Plaintiffs